

Foran Singh v. Executive Engineer, Dakshinanchal Electricity Distribution Division & Anr.

High Court of Judicature at Allahabad · Division Bench · 21 February 2012 · Writ - C No. 7963 of 2012 · **Writ dismissed; consumer left to Clause 7.10/7.7 forum.**

HEADNOTE

After an earlier writ was disposed of as infructuous with liberty to pursue Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005 against the Executive Engineer's decision on the representation, a second writ seeking mandamus to decide a later representation cannot be entertained. The consumer must avail that Code remedy.

FACTUAL SUMMARY

Foran Singh sought a mandamus to the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam, to decide his representation dated 20 May 2011. He had earlier filed Writ-C No. 15059 of 2011, which was disposed of as infructuous because the Engineer had already decided the representation by order dated 4 April 2011, with liberty to take the Supply Code grievance-redressal route. He then filed this second writ for a direction to decide the later representation.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum bar on subsequent writ after 7.10 liberty

HOLDING

Where an earlier writ has already been disposed of with liberty to pursue the remedy under Clause 7.10 read with Clauses 7.7.1 to 7.7.5 of the U.P. Electricity Supply Code, 2005 against the licensee's decision on a representation, a subsequent writ seeking mandamus to decide a further representation cannot be entertained; the consumer must avail that statutory forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE 4.4.2011 ORDER AND THE 20.5.2011 REPRESENTATION

Court refused to entertain the second writ and left the consumer to the Clause 7.10/7.7 forum. ¶ 1